IN THE NATIONAL COMPANY LAW TRIBUNAL

INDORE BENCH

COURT NO. 1

ITEM No.1

CA(CAA)/7(MP)2023

Proceedings under Section 230-232

IN THE MATTER OF:

Doubletick Media Pvt Ltd (Transferor Company)

Shruti Kapoor Multiventures Pvt Ltd

(Transferee Company) **.....Applicants**

Order delivered on 22/12/2023

Coram:

P. Mohan Raj, Hon'ble Member(J)

Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for pronouncement of the order.

The order is pronounced in open Court *vide* separate sheet.

-SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-

P. MOHAN RAJ
MEMBER (JUDICIAL)

A. Bhadauria

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

INDORE BENCH

CA(CAA)/07/MP/2023

[An application filed under section 230-232 of the Companies Act, 2013 readwith Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016]

In the matter of:

M/s. Doubletick Media Private Limited

CIN No: U64200MP2018PTC046195
A private limited company incorporated
Under the provisions of the Companies Act,2013
Having its registered office at:
E-3/10, Nupur Kunj, Arera Colony,
Bhopal, Madhya Pradesh- 462016

……Applicant/Transferor Company

M/s. Shruti Kapoor Multiventures Private Limited

CIN No: U22300MP2007PTC019651
A private limited company incorporated
Under the provisions of the Companies Act,1956
Having its registered office at:
468,Omex One, Indore Dewas Bypass Road,
Mayakhei, Indore,
Madhya Pradesh- 452016

……Applicant/Transferee Company

Order pronounced on: 22.12.2023

Coram: P Mohan Raj, Member (J)
Kaushalendra Kumar Singh, Member (T)

Appearance:

For the applicant companies: Ld. PCS Mr. Vinit Nagar

ORDER

1. This joint application is filed by the Applicant Companies namely M/s. Doubletick Media Multiventures Private Limited (Applicant Transferor Company) and M/s. Shruti Kapoor Multiventures Private Limited (Applicant Transferee Company) under section 230-232 of the Companies Act, 2013 (the Act) read with Companies (Compromise, Arrangements, and Amalgamations) Rules, 2016, for dispensation of the meetings of the equity shareholders, secured creditors and unsecured creditors of the applicant companies, for considering and approving with or without modification, a composite scheme of merger by absorption.

2. The registered office of the Applicant Companies is situated in the State of Madhya Pradesh and is under the jurisdiction of the National Company Law Tribunal, Bench at Indore.

3. Applicant Transferor Company is a private limited company having CIN No. U64200MP2018PTC046195, incorporated under the provisions of the Companies Act, 2013 on 12.07.2018, as 'M/s. Doubletick Media Multiventures Private Limited' and its registered office is situated in the State of Madhya Pradesh at Bhopal. The Authorized Share Capital of the applicant transferor company is Rs 6,00,00,000/- and its Issued and Subscribed share capital is Rs 4,78,28,520/-.

4. Applicant Transferee Company is a private limited company having CIN No. U22300MP2007PTC019651, incorporated under the provisions of the Companies Act, 1956 on 03.07.2007, as 'M/s. Shruti Kapoor Multiventures Private Limited', and its registered office is situated in the State of Madhya Pradesh at Indore. The Authorized Share Capital of the applicant transferee company is Rs 99,50,000/- and its Issued and Subscribed share capital is Rs 49,84,250/-.

5. Submissions made by the applicant companies in its application and presented by the learned counsel are summarized here as under:

i. The purpose of this scheme of merger by absorption is:

(a) To maintain a simple corporate structure and eliminate duplicate corporate procedures, it is desirable to merge the undertakings of the Transferor Company into the Transferee Company. The merger by absorption of all undertaking of the Transferor Company into the Transferee Company shall facilitate consolidation of the undertakings to enable effective management and unified control of operations.

(b) Further, to create economies in administrative & and managerial costs by consolidating operations and substantially reducing duplication of administrative responsibilities, multiplicity of records, legal and regulatory compliances.

ii. The Board of Directors of the applicant companies at their respective Board meeting held on 20.07.2023 passed the resolution for the approval of the proposed Scheme of Merger by Absorption. The certified true copies of the respective resolutions passed by the Board of the applicant companies are placed on record. The applicant companies have filed the scheme and its audited balance sheets, the same is placed on record.

iii. The accounting treatment proposed in the scheme of arrangement conforms with the accounting standards prescribed under section 133 of the Companies Act, 2013. The certificates from the respective Statutory Auditors of the Applicant Companies have been filed along with the application.

iv. No investigation or proceedings under the Companies Act, 1956/2013 have been instituted or are pending in relation to the applicant companies.

v. The provisions of the Competition Act, 2002 are not applicable in the present case. Hence, no notice is required to be served to the Competition Commission of India.

vi. The Applicant Companies have submitted that no winding up or CIRP proceedings have ever been initiated or pending against any of the Applicant Companies.

vii. The Applicant Companies have submitted that no proceedings have ever been initiated against any of them before the Board for Industrial and Financial Reconstruction established under section 4 of the Sick Industrial Companies (Special Provisions) Act, 1985.

viii. The copy of the valuation report towards the Share Exchange Ratio for the purpose of shares to be issued by the Transferee Company to the shareholders of the Transferor Company, was obtained from Mr. Piyush Bindal, the Registered Valuer-Securities or Financial Assets, **IBBI Registration No. IBBI/RV/03/2019/11763** and the same is placed on record as Annexure: A-18.

6. The learned counsel of the applicant companies submitted that as per the audit report placed on record by the applicant companies, the details of shareholders, secured creditors, and unsecured creditors are as follows:

i. That there are 5 (Five) equity shareholders of Applicant Transferor Company and all of these shareholders have given their consent by way of affidavits to the proposed Scheme of Merger. The list of equity shareholders of the Applicant Transferor Company duly certified by the Statutory Auditor and the consent affidavits of the Shareholders are placed on record respectively.

ii. That there are 3 (Three) equity shareholders of Applicant Transferee Company and all of these shareholders have given their consent by way of affidavits to the proposed Scheme of Merger. The list of equity shareholders of the Transferee Company duly certified by the Statutory Auditor and the consent affidavits of the Shareholders are placed on record respectively.

iii. That there are no secured and unsecured creditors in the books of the Transferor and the Transferee Company as on 31.03.2023. The respective Certificate from the Statutory Auditors in this regard is also placed on record.

7. The learned counsel seeks direction with respect to the dispensation and convening of the meetings of the creditors and shareholders of the applicant companies as under:

i. To dispense the meetings of equity shareholders of both the applicant transferor company and applicant transferee company as the consent has been received in writing by way of an affidavit from all the equity shareholders.

ii. To dispense the meeting of secured creditor and unsecured creditors of both the applicant companies as there are no secured creditors and no unsecured creditors in the both applicant companies.

8. On perusal of the record and submission made by the learned PCS Vinit Nagar, authorized representative for the Applicant Companies, and having perused the entire material on record, it is noted that the consent affidavit from equity shareholders of the applicant companies are received and the same is placed on record. Further, it is noted that according to the CA certificate there are no secured creditors and unsecured creditors in the applicant companies, and therefore, we pass the following order:

i. In view of the consent Affidavit given by all the Equity Shareholders of the Applicant Companies, the respective meetings of the same for the purpose of considering and, if thought fit for approving the proposed scheme with or without modifications are hereby dispensed with.

ii. Since there are no Secured Creditors and Unsecured Creditors in the applicant companies, therefore, the requirement for convening the meeting is not applicable in the present case.

9. In compliance with sub-section (5) of section 230 and Rule 8 of the Companies (CAA) Rules, 2016, the applicant companies shall send a notice in Form No. CAA 3 along with disclosures mentioned under Rule 6 to, (i) the Central Government through the Regional Director, North-Western Region, (ii) the Registrar of Companies, Gwalior, and (iii) the Income Tax Authorities concerned, stating that the

representation, if any, to be made by them shall be made within a period of 30 days from the date of receipt of such notice, failing which it shall be presumed that they have no objection to make on the proposed scheme. The said notices shall be sent forthwith by registered post or by speed post or by courier or by hand delivery or by e-mail at the office of the authority as required by sub-rule (2) of Rule 8 of the Companies (CAA) Rules, 2016. The aforesaid authorities, who desire to make any representations under sub-section (5) of section 230 of the Companies Act, 2013, shall send the same to the Tribunal within a period of 30 days from the date of receipt of such notice, failing which, it will be deemed that they have no representation to make on the proposed arrangement.

10. With the above directions, **CA(CAA)/07/MP/2023** is allowed and disposed of accordingly.

-SD- -SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

P MOHAN RAJ
MEMBER (JUDICIAL)

Surbhi - LRA